

		requirements of Subparagraph A above. (Ex. A, § 6.1.) The Agreement defines “Operator” as “the Person designated from time to time by the Consenting Parties to maintain and operate the Common Area of the Shopping Center.” (Ex. A, § 1.1.) “The Consenting Parties hereby designate Developer as the initial Operator, and Developer accepts such appointment.” (Ex. A, § 1.1.) Home Depot U.S.A., Inc is the Developer within the Agreement. (Ex. A, p. 1.) The common areas are “areas of the Shopping Center which are not actually covered by (i) a building; (ii) appurtenances thereto” (Ex. A, § 1.1.) Thus, Defendant has demonstrated Home Depot is the party responsible for the common areas, including the parking lots where Plaintiff claims the incident occurred. Therefore, Defendant has met its burden of showing it owed no duty to Plaintiff in maintaining the area where Plaintiff fell. Thus, the burden shifts to Plaintiff to show an issue of material fact. However, Plaintiff did not oppose the motion and, thus, have not met his burden. Accordingly, Defendant’s Motion for Summary Judgment is granted.
13	25-01513186 <i>Virtual Film School, Inc. vs. EON Reality, Inc.</i>	Motion – Other The Motion for an Undertaking by defendants EON Realty, Inc., Dan Lejerskr, 3D Adda Pte Ltd., and Sovereign Trust International, Ltd. is CONTINUED to _____. Defendants move for an order requiring Plaintiff Virtual Film School, Inc. to post a bond of \$50,000 pursuant to Code of Civil Procedure, section 1030. The purpose of section 1030 “is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction.” (<i>Alshafie v. Lallande</i> (2009) 171 Cal.App.4th 421, 428 [cleaned up].) To prevail on the motion, a defendant must show: (1) the plaintiff resides out-of-state or is a foreign corporation; and (2) there is a “reasonable possibility” the moving defendant will prevail in the action. (Code Civ. Proc., § 1030, subd. (a).) Defendants argue Plaintiff is a foreign corporation because the FAC alleges Plaintiff is a Delaware corporation doing business in California. (See FAC, ¶ 1.) Defendants support this fact by providing a copy of Plaintiff’s filing with the California Secretary of State, dated 5/20/22, showing it is an “Out-of-State Stock Corporation”. (Parvaneh Decl., ¶ 2, Ex. 3.) Plaintiff argues the motion should be continued or denied without prejudice so the Court can evaluate its corporate status at the time of the hearing. Plaintiff states it has always maintained its principal business location in California, its Founder and CEO has resided in California for the entirety of Plaintiff’s corporate existence and formed as a Delaware corporation to effectuate investment in the company. (Chindamo Decl., ¶¶ 4-6.) In addition, Plaintiff explains the steps it has taken to convert

		from a Delaware corporation to a California corporation. (Owens Decl., ¶¶ 3-8.) Plaintiff expects the conversion to be finalized by or around the time of the July 23, 2026 hearing. (Owens Decl., ¶¶ 9-10.) Defendants argue that waiting until the eve of the hearing to re-domicile in California is a flagrant attempt to moot the motion and subvert the posting of a bond. However, Defendants do not cite any legal authority that prohibits a foreign corporation from converting to a California corporation in response to a motion to post a bond. The Court finds no reason to ignore Plaintiff’s imminent conversion. Doing so would not further the purpose of the statute and would be a waste of judicial resources. Plaintiff is ORDERED to file proof of the finalized conversion from a Delaware corporation to a California corporation no later than five court days before the hearing.
14	24-01431161 <i>Zamudio vs. Cool Breeze Trucking Inc</i>	1) Demurrer to Amended Complaint 2) Motion for Discovery 3) Motion to Compel Deposition (Oral or Written) 4) Motion to Compel Deposition (Oral or Written) <u>Demurrer</u> Defendant Cool Breeze Trucking, Inc.’s Demurrer is OVERRULED. Defendant’s demurrer is procedurally defective. It fails to contain a notice. Thus, it violations Code Civil Procedure section 1010 and California Rules of Court rule 3.1320. <u>Motion to Compel – Covarrubias</u> Plaintiff Jorge Zamudio’s Motion to Compel Deposition Answers of Defendant Diana Covarrubias is GRANTED. The parties are ordered to meet and confer to select a date within 60 days of this order to complete the deposition. Defendant is ordered to pay \$2,851.31 in sanctions within 20 days of this order. “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480(a).) Here, Covarrubias failed to answer questions by terminating her deposition before Plaintiff’s counsel had finished asking questions. Thus, Covarrubias is compelled to attend a second deposition session to answer counsel’s remaining questions. Sanctions are mandatory for failing to answer questions at a deposition. (Code Civ. Proc., § 2025.480(j).)